

RE: [EXTERNAL] Request for referral to appropriate department

From MISJustice Alliance <misjusticealliance@proton.me>

To Bolger, Katrina <KBolger@mt.gov>

Date Thursday, June 4th, 2026 at 1:29 PM

Ms. Bolger,

MISJustice Alliance acknowledges your June 3 response and understands that POST's ARMs and internal policies govern how complaints are handled and that the Case Status Committee may review the director's determination upon request by a non-anonymous complainant.

Our prior emails did not question whether those ARMs and policies exist; they requested (a) a plain-language explanation of how they were applied to this specific complaint (including what materials were actually reviewed, when the complaint was deemed complete, and the precise basis for closure), and (b) a referral to any department, bureau, or oversight body—within the Montana Department of Justice or elsewhere—that is responsible for addressing public concerns about POST's complaint-intake, review, and closure practices when staff will not provide substantive answers.

Your latest response appears to decline both requests by again directing us only to POST's ARMs and internal policies and by not identifying any oversight office or process that can address the public-facing procedural questions we have raised. MISJustice Alliance will therefore proceed on the understanding that POST will not provide further explanation of how this complaint was handled and that POST is not offering a referral to any supervisory or oversight entity for review of its complaint-handling practices.

We will reflect this understanding, and the attached correspondence, in materials provided to state and federal oversight bodies, civil rights organizations, and any reviewing court or professional-licensing authority evaluating systemic issues in Montana's law-enforcement accountability framework.

Respectfully,

MISJustice Alliance

On Wednesday, June 3rd, 2026 at 12:13 PM, Bolger, Katrina <KBolger@mt.gov> wrote:

As I provided before, POST's ARMs and policies outline how complaints are handled.

Katrina Bolger

Lead Operations Specialist/Paralegal

Montana Public Safety Officer Standards and Training Council

2260 Sierra Road East

Helena, MT 59602

Phone: 406-444-9974

Fax: 406-444-9978

Office Hours: Mon.-Fri. 7:00-3:00



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From: MISJustice Alliance <misjusticealliance@proton.me>

Sent: Wednesday, June 3, 2026 2:20 AM

To: Bolger, Katrina <KBolger@mt.gov>

Subject: RE: [EXTERNAL] Request for referral to appropriate department

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Ms. Bolger,

Thank you for your response. MISJustice Alliance will advise Mr. Nuno that he may pursue a review separately through the Case Status Committee, and that the Case Status Committee of the POST Council can review the determination of the director upon request. It is notable that this avenue was not disclosed to Mr. Nuno during his repeated attempts to communicate with POST when seeking clarification regarding the status and handling of his complaint.

MISJustice Alliance's outreach, however, concerns a distinct administrative issue: POST's complaint-handling process, the basis for its determinations, and **the absence of substantive responses to direct questions posed in previous e-mails regarding those procedures**. The record further reflects an extremely condensed timeframe for closure, which raises a serious question as to whether the submission was meaningfully reviewed before the matter was closed, particularly in light of the repeated failure to address the specific questions presented, or how such complex and detailed matters possibly could be adequately reviewed in a matter of hours.

Our concern is also reinforced by POST's public reporting, which appears to indicate that complaint referrals are almost exclusively generated internally by law-enforcement agencies rather than by civilians raising external concerns. If that understanding is inaccurate, please identify the public office or record that clarifies POST's process for civilian-origin complaints. If our reading of POST's annual reporting is accurate, it underscores the need for a direct public explanation of how such complaints are reviewed and closed.

Accordingly, if POST will not provide a substantive public explanation of its procedures, please refer MISJustice Alliance to the specific department, bureau, or oversight office that is authorized to address questions regarding POST's complaint intake, review, and closure practices. **A referral to the appropriate public office is requested, not a reiteration of POST's internal policies.**

Respectfully,

MISJustice Alliance

Sent with [Proton Mail \[proton.me\]](https://proton.me) secure email.

On Tuesday, June 2nd, 2026 at 9:39 AM, Bolger, Katrina <KBolger@mt.gov> wrote:

The Case Status Committee of the POST Council can review the determination of the director upon request, however, such a request may not be made anonymously, as we do not accept anonymous complaints.

Katrina Bolger

Lead Operations Specialist/Paralegal

Montana Public Safety Officer Standards and Training Council

2260 Sierra Road East

Helena, MT 59602

Phone: 406-444-9974

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From: MISJustice Alliance <misjusticealliance@proton.me>

Sent: Tuesday, June 2, 2026 9:08 AM

To: Bolger, Katrina <KBolger@mt.gov>

Subject: [EXTERNAL] Request for referral to appropriate department

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Ms. Bolger,

MISJustice Alliance understands that POST has declined to proceed and that the matter is closed. Because POST has not answered the substantive questions raised and has not identified any further avenue for review, please refer MISJustice Alliance to the specific department, bureau, or oversight body within the Montana Department of Justice, or elsewhere, that can provide information about how these complaints are being handled.

We are not asking for a restatement of POST's written policies. We are asking where the public can direct concerns about the handling, review, and closure of complaints when POST will not provide substantive explanation or additional insight.

If no such referral exists, please state that directly.

Respectfully,

MISJustice Alliance

On Wednesday, May 27th, 2026 at 1:44 PM, MISJustice Alliance <misjusticealliance@proton.me> wrote:

Ms. Bolger,

Thank you for your reply. MISJustice Alliance is already aware that POST's ARMs and allegation policy/procedure are publicly available, and our prior correspondence already referenced the public materials. Your response still does not answer the questions that were asked: what portion of the submission was actually reviewed, how the broader chronology was evaluated, and why the request to correct the framing of the complaint was not addressed.

To be clear, the issue is not whether POST has written policies. The issue is whether those policies were actually applied to the full substance of the complaint, including the material showing that this was presented as an ongoing pattern rather than an isolated event, and whether the complaint was closed after meaningful review of the supporting materials. A general statement that the policies exist does not explain why the complaint was declined, nor does it explain why the correction requested in follow-up correspondence was not answered.

If POST's position is that the complaint was rejected because of jurisdiction, age, scope, or because the supporting materials were not reviewed, please say so directly. If POST is relying on a specific policy provision, please identify it in plain language so the basis for closure can be understood.

Please provide, in plain language:

- The specific ARMs or POST policy provisions relied on.
- The specific date the complaint was deemed complete for review.
- Whether the submitted attachments and linked materials were actually reviewed.
- The specific reason the complaint was closed, beyond the general statement that it was outside POST's purview or older than five years.

For reference, the publicly posted materials are:

Original e-mail chain:

[cr-2025-002-complaint-12_misjusticealliance.arweave.net](https://misjusticealliance.arweave.net/cr-2025-002-complaint-12_misjusticealliance.arweave.net) [cr-2025-002-complaint-12_misjusticealliance.arweave.net]

MT DoJ POST Complaint (August 2025):

[www.ywcaofmissoula.com/montana-state-complaints/mt-doj-public-safety-officer-standards-training-post-complaint-august-2025](https://ywcaofmissoula.com/montana-state-complaints/mt-doj-public-safety-officer-standards-training-post-complaint-august-2025) [ywcaofmissoula.com]

Post-Mortem of MT DoJ POST Complaint Dismissal (August 2025):

[www.ywcaofmissoula.com/montana-state-complaints/post-mortem-of-mt-doj-post-complaint-dismissal-august-2025](https://ywcaofmissoula.com/montana-state-complaints/post-mortem-of-mt-doj-post-complaint-dismissal-august-2025) [ywcaofmissoula.com]

Structural Failure of Police Accountability in Montana:

[www.ywcaofmissoula.com/legal-analysis/structural_failure_of_police_accountability_in_montana_from_mpd_to_post\[ywcaofmissoula.com\]](http://www.ywcaofmissoula.com/legal-analysis/structural_failure_of_police_accountability_in_montana_from_mpd_to_post[ywcaofmissoula.com])

Respectfully,

MISJustice Alliance

On Wednesday, May 27th, 2026 at 11:40 AM, Bolger, Katrina <KBolger@mt.gov> wrote:

Complaints are reviewed pursuant to [POST's ARMs](#) and [allegation policy/procedure \[dojmt.gov\]](#), all of which are publicly available information.

The complainant was given the reasons for POST not proceeding in this matter.

Katrina Bolger

Lead Operations Specialist/Paralegal

Montana Public Safety Officer Standards and Training Council

2260 Sierra Road East

Helena, MT 59602

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Fax: 406-444-9978

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From: MISJustice Alliance <misjusticealliance@proton.me>

Sent: Tuesday, May 26, 2026 7:27 AM

To: Bolger, Katrina <KBolger@mt.gov>

Subject: [EXTERNAL] Request for clarification regarding POST procedures and complaint closure

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Dear Ms. Bolger,

MISJustice Alliance writes to request clarification regarding POST's procedures and the handling of the complaint submitted in August 2025. The publicly posted materials identify the matter as "MT DoJ Public Safety Officer Standards & Training (POST) Complaint (August 2025)" and the later "Post-Mortem of MT DoJ POST Complaint Dismissal (August 2025)," which together describe the complaint, the response, and the closure of the matter. The related public index also places those materials within a broader set of Montana and Washington complaint records, including the "Structural Failure of Police Accountability in Montana" analysis.

We would appreciate clarification regarding how POST evaluates complaints, how it determines whether allegations fall within its purview, and how those standards were

applied here. The publicly posted materials state that the complaint was submitted on August 12, 2025, that POST responded on August 13, 2025 that the "majority of the issues" were outside its purview and that complaints over five years old are generally not investigated, and that the matter was then closed by August 27, 2025. In light of that condensed timeline, please explain whether POST reviewed the full submission and the accompanying materials before determining that no investigation would proceed.

We also request comment on the refusal to address the correction regarding the framing of the complaint. The public correspondence reflects that the complaint was being presented not as an isolated incident, but as part of a longer pattern of conduct spanning years and multiple jurisdictions. If POST declined to engage that clarification, please indicate whether that decision was based on jurisdiction, policy, evidence-access limitations, or another procedural reason.

For reference, the related public materials are:

[Original e-mail chain \[cr-2025-002-complaint-12_misjusticealliance.arweave.net\]](#)

[MT DoJ POST Complaint \(August 2025\) \[ywcaofmissoula.com\]](#)

[Post-Mortem of MT DoJ POST Complaint Dismissal \(August 2025\) \[ywcaofmissoula.com\]](#)

[Structural Failure of Police Accountability in Montana \[ywcaofmissoula.com\]](#)

Respectfully,

MISJustice Alliance

19.27 KB 1 file attached 1 embedded image

image001.png 18.38 KB

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